

that no noble man or subiecte whatsoeuer maye buylde any forte or howse wth battlem^{tes}: 5 E. 2; Britton & Bracton; *quaere*.

'*Nihil est illicitum quod est necessarium. Necessitas lex temporis*; but the Lo. Chauncellor said he had learned a rule that the prerogative meddles not wth *meum et tuum*; the kinge Can not take my lande or goods & giue it to another, but where the Common state or wealthe of the people or kingedome require it, the kinge's proclamacion bindes as a lawe, & neede not staye a parliam^{te}; & as a father saythe, when lawes are in making euery man may speake, but being made *iudicandum est secundum leges*.

'Louche was fined 200^l,¹ imprisonm^{te}, & his howse to be plucked downe, & for contemptuous wordes againste a J. of p., Sr John Granger, he was to be bounde to his good behaioure. [p. 312]
Sentence

'Hollande, in respecte of his milde & modeste caryage, w^{ch} was much Commended by the Courte, he was fyned 100^l, imprisonm^{te}, & the forefronte of his howse to be newe buylde wth bricke before whitsontide nexte, or else to be plucked downe.'

Sir Henry Mountague,² Recorder of London, and now the King's Counsel at large, the place that Sir Francis Bacon had, informed, that these Causes being infinite, this Court two years ago appointed a Commission, and by it they found three hundred faulty in this, and in four large houses they found now 8,000 inhabitants, & the last great plague 800 out of one of them died of the pest; and if it be not reformed the people cannot have food, nor can they be governed.

¹ See Appendix VII.

² Third son of Edward, eldest son of Sir Edward Montagu, Chief Justice of the King's Bench and Common Pleas in the reigns of Henry VIII. and Edward VI. Elected Recorder of London, 1603; M.P. for the City of London, 1604; King's Serjeant, 1611; Chief Justice of the

King's Bench, 1616; Lord Treasurer, 1620, when he was created Baron Montagu of Kimbolton and Viscount Mandevill; Lord President of the Council, 1621; created Earl of Manchester, 1626; Lord Privy Seal, 1628; ob. 7 Nov. 1642. See Foss's *Judges*; *Complete Peerage* by G.E.C.

1607
Oct. 16
Ore tenus
on confession
only

Cooke [Coke] said that on *ore tenus* they ought only to proceed on confession, and not otherwise, notwithstanding it appear plainly to be true.

This last vacation John Rennols, Utter Barrister of the Inner Temple,¹ Johnson, a Bencher of the Middle Temple, Atkinson of Lincoln's Inne,² and Ellis of Graie's Inne,³ died.

1607
Oct. 21

In Camera Stellata, coram Consilio ibidem, Mercurij, 21^o Octobr. 1607.⁴

STANDISHE
v.
WOOLNER
Riot

[p. 313]

Sentence

'Woolner, knighte, a Justice of peace, defend^{te}, & Standishe,⁵ plaintiff, for a riot. Standishe had a lease for yeares from the late Queene, & Woolner gotte a leasse in reuersion, bothe wth a Clause of re-entrie for non paiement^e of rente, Standishe makes defalte of paiem^{te}, & Woolner not knowinge thereof, he makes no tender neyther; so bothe leasses were forfeited: & Standishe he takes a newe leasse in possession, & woolner, supposinge that Standishes first lease was in beinge, & that vpon the determinacion thereof his leasse in reuercion shoulde Commence, sendes at seuerall times seuerall persons, & but 2 at any one time together, to enter & take the possession, & to dryue off Standishe's Cattelle; & woolner's men wente & draue of the Cattelle, & beinge put in agayne by Standishe, they resyste them, beate & wounde them, & kille some of the Cattelle. & for this woolner was fyned 1000^{li}, his men, some 30^{li}, some 40^{li} a peece, imprisonm^{te}, woolner to be thruste oute of the Commission, & he & all his people to be bounde to there good behauyoure.'

¹ John Reynolds of Chesterford, co. Essex; admitted, Nov. 1586; called to the Bar, 1595.

² No one of this name appears in the books of the Inn for this period; there were several 'Atkins.'

³ There were several Ellises of Gray's Inn at this time.

⁴ Eight Councillors and Judges

were present.

⁵ The Standishes are a well-known Lancashire family, whose principal seat is at Duxbury. In the absence of any Christian name it seems impossible to identify the plaintiff in this case. I cannot identify the defendant either.

In Camera Stellata, coram Consilio ibidem, Venetis, 28 Octobr. 1607.¹

1607
Oct. 23

'Sr John Stafforde,² relator *versus* Parmeter, an Attornie of the Common place, for mainteynaunce & buyinge of a bonde; but the Defendaunte was acquted by the Cowrte, yet blamed for that he woulde intermeddle in sollicitinge or followinge any Cause in any Cowrte but where he ys an attornie, for no man Can be a generall sollicitor, & the lawe takes knowledge of none to intermeddle wth lawe busynesses but *homo consiliarius et in lege peritus, et Attornatus siue procurator*; & they must doe it for there Fees; neyther can they disburse monie for Fees or Copies, but in there owne Cawses: & therefore that Attornie sayd well, w^{ch} was olde Crowe, when his Clyentes woulde haue him paye Fees & disburse monie for them, "I doe not loue," quothe he, "that any man showlde goe to lawe wth my monie." Which was Commended for a good & an honeste aunswaere, & the man ys yet lyuinge, & hathe 500^{li} lande by the yeare. Yet yf a man wryte vnto an attornie to instructe or reteyne counselle, or take out proces for him, it is so Common & necessary for the poore of y^e Cuntrye that, albeit yt be an offence againste the lawe, yet this Cowrte will not sentence yt:

STAFFORD
v.
PARMETER
Maintenance
Acquittal

No man can
be a general
sollicitor

[p. 314]

'For a man to buye a dette or a bonde, it is againste a rule in lawe, that noe man Can graunte a thinge in action, excepte it be for the satisfaction of a trewe dette, *bona fide, sine fraude et dolo*, as it is 24 H. 6, 5 H. 7, 5 E. 4, & so did this defend^{te}; but he was blamed allso for Compoundinge a Cause wthout lycense of the Cowrte, for no man oughte to doe it.

Buying
debts or
bonds

'Sr John Stafforde was greatelye blamed by the Cowrte that beinge so worthye a gentleman, so honorablye discended, & otherwyse so well deseruinge in himselfe, that he woulde stoope to so base an office as to be an ynformer, whoe

Sir John
Stafford
blamed for
becoming
an informer

¹ Nine Councillors and Judges and the Earl of Essex at Calais, were present. 1596. Metcalfe, *A Book of Knights*, Knighted by he Lord Admiral 137.

1607
Oct. 23

Not main-
tenance to
inform in
the Star
Chamber

[p. 315]

Outlaw
cannot be
witness

albeit they be necessarye in euerye well gouerned state, yet for the moste parte they are of the meaner & worste kinde of people ; but for feare of danger & discourage to others to doe the lyke, they spared to fyne him *pro falso clamore*, & the Lo. Chauncellor he sayd he would be sparinge in his bille of Costes : for it is not mayntenaunce for any man to ynforme in this Cowrte or in an inditemente, for all is for the kinge, & 1 R. 2, cap. 4, & 4 H. 4,¹ doe not extende to this kinde of Relators ; but the Cowrte founde greateste faulte for that, vnder Collor of relation, he vsed the parties greeued for wytnesses, whose testimonie was disallowed by the Cowrte, & ordered now that none shoulde vse it hereafter : & that a man vtlawed Can not be a wytnesse nor receaued to wage his lawe. It was allso muche mislyked by the Cowrte that Commissioners vse to take depositions *affirmatiue aut negatiue*, a greate trouble to the Cowrte & not to be receaued, neyther any discreete Commissioner to vse it or admitte of them.'

ROGERS
v.
MACHIN

' Another Cawse of hearinge betwene Rogers & Machin, for 5^s fine for a Copieholde, was dismissed as vnworthie of the Cowrte.'

1607
Oct. 28

In Camera Stellata, coram Consilio ibidem, Mercurij, 28 Octobr. 1607.²

GOSSE
v.
BADCOCK
and others
Riot

Sentence

Coke quotes
Plutarch

' Cause of hearinge, Gosse, plaintiff, Badcocke, defend^{ts}, for a riot in entringe to a howse forciblye & keepinge the possession ; but the ryote was suche that they thoughte it vnfyte to trouble the Cowrte therewth ; yet beinge now posseste wth the same, they sentenced yt, & fyned the defend^{ts} 50^{li}. & his 2 seruantes 10^{li}. a peece, & imprisonm^{ts} of course. The Lo. Kooke sayde he remembred a prettie storie in Plutarche : an ill painter had painted a Cocke, &

¹ 1 Ric. II., cap. 4. 'The several Penalties of several Persons that do maintain Quarrels.' I cannot identify the statute of 4 Hen. IV., if

indeed the reference is to a statute.

² Eight Councillors and Judges were present.

one asked what yt was, & he sayde, "a Cocke;" then quoth he, "yt is a very Bad cocke, you are beste wryte ouer his heade 'this ys a Cocke,' or else they will saye it is a goose." The Lo. Northampton [said] that the propertie of a good Cocke ys to be *vocalis* to Calle men to there woorke, viz. to there lawfull vocation, but heere was a Badcocke indeede that Called them to this vnlawfull woorke.'

Lord North-
ampton's
joke

'Another Cause of hearinge, Russe, plaintiff, and Fraunklin, defend^{ts}, for Forgerye of a deede of Feoffem^{ts}; but yt was proued by 5 wytnesses that the partye did sealle & delyuer the Deede, & that the same was reade vnto him, so yt Coude be noe Forgerye, albeit the Clerke had inserted other matter in the Deede then the partye gaue him instructions for, he seallinge & delyueringe the same as his Deede. & so he was acquyted & dysmissed.'

RUSSE
v.
FRANKLIN
Forgery

[p. 316]

Acquittal

In Camera Stellata, coram Consilio ibidem, Venetis, 30 Octobr. 1607.¹

1607
Oct. 30

'Cause of hearinge betwene Rowlie, plaintiff, & Penkethe, defend^{ts}, for matter of Riote vpon the sabaothe daye in the time of diuine seruice, comminge wth a Carte wth vittaille & other prouision, wth men & women, & entringe into a barne, & holdinge possession againste Irelande, a Justice of peace. but the proces was not dulye serued vpon the principall defendaunte, but vpon one of the Defendauntes onely, w^{ch} albeit it be sufficiente for an apparaunce or to make aunswere, yet *ad audiendum iudicium* it is not sufficiente; & therefore althoughe they were guyltie yet the Courte woulde not sentence them: & the Lo. Ch. Justice Coke sayde that albeit the Common lawe did not punishe the breache of the Sabbaothe daye, yet for his parte he woulde binde them to there good behauioure that vsed prophanation of that Daye, & he had good warraunte so to doe.'

ROWLIE
v.
PENKETHE
Riot

¹ Seven Councillors and Judges were present.

1607
Oct. 30
MOORE
v.
JACKSON
and others

' Another Cause of hearinge *enter* Moore, widow, plaintiff, & Jackson & others, defend^{tes}, but no affidavit was made that any proces was serued, & the Defend^{tes} did not appeare : & so it was dysmissed.'

STEPNEY
v.
WARREN
Misdemeanours

' Another Cause of hearinge, Steptney, plaintiff, againste Warren, defend^{te}, a Justice of peace in Breaknokshire, for many vilde misdemeanors : & referred to the nexte daye to be sentenced.'

[p. 317]
1607
Nov. 4

In Camera Stellata, coram Consilio ibidem, Mercurij, 4^o Nouembr. 1607.¹

STEPNEY
v.
WARREN
Misdemeanours

' The same Cause of hearinge betwene Stepnie, plaintiff, againste Warren, defend^{te}, a Justice of peace in wales, who had Committed many vilde, lewde & odious misdemeanors, & hauing no Counselle nor any matter of excuse or defence, pleaded in generall wordes the generall pardon, w^{ch} by th'opinion of the Judges was nothings, for that he oughte to haue pleaded it speciallye, wth all the exceptions : his offences were either suche as Concerned his priuate person, as multiplicitie of causeles suites againste dyuerse in moste Cowrtes, stirred oute of malice, & causeles, for vexatyon & reuenge, & to raise & drawe matter of benefytte to himselfe, keepinge twooe of his owne seruantes to be Common ynformers, & takinge very baselye of some 10^s & 20^d for composition ; or his publike offices that he bare, either as a Justice of peace takinge a Cople of oxen & other bribes, Countenauncinge offenders, baillinge & suffringe to escape Felons, persons suspected of murder, & suche lyke offenders, goinge to the goale, takinge of irons from malefactors & others in vpon executions for dettes, gettinge possession of Cattelle by collar of a repleuin, (a thinge heretofore vsed & by th'opinion of the Lo. Coke adiudged felonie, & they dyed for it), rescuinge himselfe being arrested vpon a *Capias*, &c. : or, as he was a Commissioner for the subsidie, admittinge of some Cessors that payde nothings, takinge monie of

¹ Eleven Councillors and Judges were present.

others to discharge them ; or, as he was tresorer for the poore, hauinge Collected & gotten into his handes 46^{li}, & disbursed noe parte of it for the vse of the poore : or, [as] he was an eschetor, thereby defraudinge the kinge of his rightes. For any one of theise offences seuerallye by it [p. 318] selfe the Cowrte was of clere opinion that it was worthye of sharpe & seure punishement, & in iudgem^{te} or punishmente the person of any man ys not to be respected, but th'offence, *pena delicto non delinquenti* ; & the punishm^{te} or offence of one Justice of the peace ys no disgrace to all the reste that are vertuous, honeste, painefull, & an honorable & necessarye callinge or office, wthout whome the fabrike of the gouernemente Can not Contynewe : but th'offence is the greateste when Justice is made th'instrumente, Collor, shadowe, or stalkinge horse to offende, forgettfull of his othe as a J. of peace, of his othe as a leige man taken at 12 yeares of age, a necessary law & fitte to be still obserued ; yf theise periuries had bene pertycularlye Compleyned of, the Cowrte woulde haue sentenced him in that kinde. He made a *supersedeas* for felonie, a thinge neuer hearde of before : For his offence as a Commissioner of the subsidie, it was verye greate, & albeit he be not ymmediatlye sworne, yet by his oathe as a Justice of peace he is sworne to execute the same trulye, & all men haue assented to the same in parliam^{te}, & it is the kinge's dette euen as tythes are due to y^e Church, so let the kinge at the leaste haue the tenthe, for it is a miserable thinge that the state & kingedome shoulde be so riche & the kinge's treasure so poore. Sythence the Queene's deceasse many necessarye & needefull Charges haue bene imposed vpon the kinge, suche as the lyke were neuer hearde of in this kingedome, as the Queene's buriall, in w^{ch} the kinge Commaunded very honorablye that noe Coste shoulde be spared for her whose memorye will be euer blessed & honorable, yet she wanted one greate blessinge, w^{ch} to o^r exceedinge greate Comforte we are now more happie, the yssues of his [p. 319] Ma^{tie} : his Comminge in the Queene's, the prince & all the posteritie [*sic*]. The Lo. Treasurer, as proper to his place,

1607
Nov. 4

Sentence

spake very muche to this purpose : & the Lo. Coke helde it a greate offence, the defraudinge of the poore, a good & a Charitable lawe, & *panis pauperum vita pauperum, qui defraudat eos vir sanguinis est* : & by all it was Conceaued a masse of offences ; for all w^{ch} he was Fyned 2000 markes, ympri-sonm^{te} of course, to weare papers aboute Westminster halle, at the Assises & at the Commission for the subsidye, to be bounde to his good behauyore, to be disabled from bearinge any ministeriall or iudiciall office, to repaye the 46^{li}. to the vse of the poore, & 5^{li}. a peece to all those that he hathe wrongfullye sued, & good Costes : & there was one other defend^{te} againste whome they did not proceede, he was dismissed wth Costes.'

1607
Nov. 6

In Camera Stellata, coram Consilio ibidem, Veneris, 6 Nouembr. 1607.¹

EARLNE
v.
WATKINS

Acquittal
Plaintiff
fined

'Earlne, plaintiff, Watkins, defendant ; *mes* S^r Nicholas Hide² was the man that Followed it againste one Chase for a bargaine of his timber ; after 2 trialls & the bargaine proued, he sued the wytnesses & some of y^e Jurye heere for periurye, a very tryflinge Cause ; & the defend^{te} was dismissed wth Costes, & the pl. fyned 40^{li}. & 20^{li}. dammages to the defend^{te}.'

DUDGEON
v.
BURINGTON
and others
—
Riot
Sentence

'Another Cause of hearinge, Dudgeon, pl., & Burington & others, defend^{tes}, for matter of riote in beatinge, woundinge & mayminge the pl., in the Churcheyarde in Herefordshire : three of the defend^{tes} were fyned 200^{li}. a peece, commytted, & before there delyueraunce to be bounde wth good suerties to there good behauyore, & the pl. to haue good Costes, & 60^{li}. dammages in regarde of his woundes & innocente bloude that he shedde.

[p. 320]

'But Secretarie Herberte and S^r Julius Cesar³ gaue

¹ Eleven Councillors and Judges were present.

² Probably Sir Nicholas Hide of Albury, co. Herts, Sheriff 17 James I. ; created a Baronet 8 Nov. 1621. Burke, *Extinct Baronetage*.

³ Sir Julius Cesar was the 3rd

son of Cesar Adelmare, physician to Queens Mary and Elizabeth. At this time he was Master of the Court of Requests. He was afterwards appointed Master of the Rolls. Died 1636. Foss, *Judges*.

there sentence accordinge to y^e statute of 5 E[dward] 6, cap 4, which is, if any one shall by words quarrel or brawl in a church or churchyard and the offence is proved by two witnesses, the offender, if a layman, shall be suspended by the Ordinary *ab ingressu ecclesiae*, and if a clerk, from his office. If any one smite or lay violent hands on another in church or churchyard, *ipso facto* he shall be deemed excommunicate. If any strike another with a weapon, or draw a weapon with intent to strike another, and be convicted of this by the verdict of 12, on his own confession, or by two lawful witnesses, before the Justices of Assize, the Justices of *oyer et terminer*, or the Justices of the Peace at their Sessions, he shall be sentenced by the Justices before whom he is so convicted to have one of his ears cut off, and if he have no ears, he shall be burned on the cheek with the letter 'F' for 'fraymaker' or 'fighter,' and he shall be *ipso facto* excommunicate.

Herberte
and Caesar
differ
5 Edw. VI.,
cap. 4

'But the Judges differed from them as before, firste for that the bill was not framed vpon this statute nor any other speciall statute, but generallye, & allso this statute lymitethe pertycularlye the Judges of th'offenders againste that lawe.

'Yet the Lo. Chauncellor was of opinion that this Cowrte mighte giue that sentence, or any other Corporall punishem^{te} but lyfe: yet the Lo. Coke sayd that *maxima pecuniaria pena maior est quam minima corporalis*. & in that respecte the sentence was the greater, for Churchyardes are consecrated to pious vses, the places where the temples of the holye ghoste lye, the bodyes of the sayntes, men are to be in peace to doe there deuotion; a growing euell, men gyuen to prophanenes, the nexte waye to Atheisme, whereas heretofore they were sanctuaries & places of refuge; & by the aunciente lawe noe preiste either goinge or comminge from the Church Can be arrested in his person: & so they all wysshed that there mighte Care be had to punishe those that vsed either prophanation one the Sabaothe daye, or in Church or churchyard, and that the people mighte resorte & Contynewe at y^e Church wth deuotion all the time of diuine seruice.'

Churchyards